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Tentative Ruling

Re: **Lucas v. SW Ingredients Holdings, LLC, et al.**
Superior Court Case No. 21CECG01943
Consolidated with
Magallan v. SW Ingredients Holdings, LLC, et al.
Superior Court Case No. 21CECG03840

Hearing Date: July 15, 2026 (Dept. 503)

Motion: Report by Plaintiffs Pursuant to Code of Civil Procedure
Section 384, Subdivision (b)

Tentative Ruling:

To approve the report by the class settlement administrator. To direct class counsel to submit an updated amended order granting final approval of the settlement and entering judgment which accounts for the disposition of all funds. The proposed judgment shall be submitted on or before July 24, 2026.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 7/14/2026.
(Judge's initials) (Date)

(20)

Tentative Ruling

Re: ***Hatcher v. the Estate of Steven Meunier***
Superior Court Case No. 21CECG01638

Hearing Date: July 15, 2026 (Dept. 503)

Motion: Default Prove-Up

Tentative Ruling:

To deny without prejudice.

Explanation:

Plaintiff has not submitted admissible evidence of the damages sustained and sought. The court is required to render default judgment only “for that relief ... as appears by the evidence to be just.” (Code Civ. Proc., § 585, subd. (b).) Therefore, it is up to plaintiff to “prove up” the right to relief, by introducing sufficient evidence to support plaintiff’s claim. Without such evidence, the court may refuse to grant a default judgment for any amount, notwithstanding defendant’s default. (*Taliaferro v. Hoogs* (1963) 219 Cal.App.2d 559; *Holloway v. Quetel* (2015) 242 Cal.App.4th 1425, 1434-1435 [trial court did not err in refusing to enter default judgment for pro per plaintiff who failed to submit appropriate supporting documentation].) Prima facie evidence of damages is required. (*Kim v. Westmoore Partners, Inc.* (2011) 201 Cal.App.4th 267, 288.) The facts stated in the declaration shall be within the personal knowledge of the affiant and shall be set forth with particularity, and each affidavit shall show affirmatively that the affiant, if sworn as a witness, can testify competently thereto.” (Code Civ. Proc., § 585, subd. (d).)

When special damages for personal injury are proved, general damages are presumed, although the plaintiff need not prove special damages to recover general damages. (*Hilliard v. A. H. Robins Co.* (1983) 148 Cal.App.3d 374, 412.) Damages recovered for pain and suffering compensate the injured person for all the physical, mental, and emotional suffering and distress that attend on and follow a bodily injury. (See CACI 3905A.) The trier of fact must place a monetary value on pain and suffering, and an appellate court cannot measure the validity of an award by making comparisons with other cases. (*Rodriguez v. McDonnell Douglas Corp.* (1978) 87 Cal.App.3d 626, 655.)

Plaintiff seeks \$6,779.61 in special damages, yet submits no evidence of these damages. Assuming these are medical expenses, documentary proof must be submitted in admissible form.

“The amount of general damages awarded is usually correlated to the special damages proved.” (*Jones v. Interstate Recovery Serv.* (1984) 160 Cal. App. 3d 925, 928.) If plaintiff sustained \$6,779.61 in special damages, \$150,000 in general damages would seem to be excessive, especially where there is no indication that plaintiff experienced any physical injury, pain or suffering as a result of the accident.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 7/14/2026.
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